

Bylaws of the New England Antiquities Research Association (NEARA)

May 2026 revision

ARTICLE I: TITLE

Sect. 1: The name of this association shall be the “New England Antiquities Research Association”, as chartered under the laws of the State of New Hampshire on May 20, 1961 and recorded with the NH Secretary of State on May 20, 1964. It may be referred to by the abbreviated title of NEARA.

Sect. 2: The New England Antiquities Research Association may also be known as, and do business under, the alternate business name of the “North East Antiquities Research Association”.

ARTICLE II: OBJECTIVES

Sect. 1: NEARA shall support the investigation of the origin and function of American lithic features and sites in their cultural context, as interpreted through relevant disciplines. NEARA research and publications shall be for the purpose of protecting and preserving such sites, and for the education of the public.

Sect. 2: All members shall abide by the Bylaws of the Association and shall observe and encourage the preservation and protection of private property, historic sites and enigmatic findings. Members shall be guided by the ethical standards established by the Society for American Archaeology (see Appendix A).

ARTICLE III: MEMBERSHIP

Sect. 1: Any person who subscribes to the objectives of the Association and who has paid the annual dues is considered a member. A member whose payment of dues is in arrears for more than one (1) year may be considered inactive and forfeit membership privileges.

Sect. 2: Honorary memberships may be granted by the Board of Directors. Honorary members shall not be subject to dues and shall continue on the membership roll indefinitely, unless specifically determined by the Board.

Sect. 3: Other categories of membership may be established by the Board of Directors.

Sect. 4: In addition to the cause of failure to pay dues (Sect. 1), a membership may be revoked for cause at any time by a decision of the Board of Directors, where the member has demonstrated a failure to uphold the standards and objectives of the Association. There shall be no refund of dues already paid in the event that a membership is revoked by the Board. A member whose membership has been revoked by a decision of the Board may only be restored to membership by a decision of the Board.

ARTICLE IV: FINANCES

Sect. 1: The fiscal year shall be from January 1 to December 31. A financial report shall be given at the annual meeting.

Sect. 2: The annual dues for all types of membership shall be determined by the Board of Directors.

Sect. 3: The Treasurer shall be responsible to the Board of Directors for Association funds, disbursements and recording of the same and for preparing timely reports of all financial activities of the organization.

Sect. 4: All donations, gifts and grants, unless specified as to the usage by the donor or grantor, may be applied by the Board of Directors either to specific purposes or to the general obligations of the Association.

Sect. 5: A listing and records of all monetary donations, gifts, grants, etc., including amount and purpose, shall be kept and maintained by the Treasurer.

Sect. 6: A budget for the ensuing year shall be presented to the Board of Directors by the Treasurer, reflecting recommendations by the officers and the Standing Committees. The budget shall consider the

needs of each committee. Upon approval of the budget by the Board, the Treasurer is empowered to honor vouchers for payment as presented by the Committee Chairs, or other persons authorized by the Chair. Requests to exceed any line item in the budget must be referred to the Board for approval.

Sect. 7: If the total amount of any extra-budgetary net expenditure entered into by NEARA exceeds five thousand dollars (\$5,000), then a two-thirds vote of the Board is required before the transaction is entered into, and publication in the NEARA Transit newsletter is required.

Sect. 8: If the total amount of any extra-budgetary net expenditure entered into by NEARA exceeds one thousand five hundred dollars (\$1500) but is less than or equal to five thousand dollars (\$5,000), a majority vote of the Board is required before the transaction is entered into.

Sect. 9: The restrictions of Sects. 6 to 8 notwithstanding, the Treasurer is empowered to pay expenses and deposits directly related to a NEARA Conference that is planned to take place in the calendar year following the current calendar year without a specific Board resolution, whether or not the budget for that year has been submitted or approved.

ARTICLE V: GOVERNMENT & TERMS OF OFFICE

Sect. 1: The government of this Association shall be vested in a Board of Directors consisting of the President, the First Vice President, the Second Vice President, the Secretary, the Treasurer, the Chairs of Standing Committees, the Chapter Coordinators, and not less than four (4) nor more than eight (8) Directors-at-Large.

Sect. 2: The President, First Vice President, and Second Vice President shall be elected for terms of three (3) years, but shall not be eligible to serve more than two consecutive terms in one office. The Secretary shall be elected for terms of three (3) years. The Directors-at-Large shall be elected for terms of two (2) years, but not more than four shall be elected in any one year.

Sect. 3: The Treasurer, Chairs of Standing Committees, and Chapter Coordinators shall be appointed by the President with the approval of the Board soon after the annual meeting, following election of all other officers and Directors-at-Large.

Sect. 4: The Board of Directors shall have full control of the property, funds, management and policies of the Association, subject to review by the membership.

Sect. 5: The Board of Directors may, by a vote of two-thirds (2/3) of the full Board, remove any officer for just cause presented and determined. Vacancies in the Board of Directors or in any other office shall be filled by vote of the Board, such appointees to fulfill the duties and office for the unexpired term.

ARTICLE VI: NOMINATIONS AND ELECTIONS

Sect. 1: Elections shall be held at the annual meeting in the spring.

Sect. 2: The President, with the approval of the Board of Directors, shall annually appoint a Nominating Committee of five (5) members, at least one (1) and no more than three (3) of whom shall be a member of the Board of Directors. Members of the Nominating Committee shall serve for one (1) year and may not serve more than three (3) consecutive terms.

Sect. 2.1: Each member of the Nominating Committee shall be approved individually by a majority vote of the Board of Directors. If the President does not present a full slate of Committee nominees within ninety (90) days following the annual meeting, the Board may, by majority vote, appoint Committee members directly. Vacancies on the Nominating Committee shall be filled by Board appointment for the remainder of the term.

Sect. 2.2: The Nominating Committee shall conduct its work independently. No Board member shall direct, influence, or attempt to influence the Committee's decisions or slate. Board members who are not Committee members may only attend Committee meetings or participate in deliberations when invited by a majority of the Committee.

Sect. 2.3: The Nominating Committee shall elect its own Chair by majority vote at its first meeting. All decisions of the Nominating Committee shall be made by majority vote of its members. The Nominating Committee shall identify, recruit, and evaluate qualified candidates for all open elected positions from among NEARA membership. The Committee shall solicit nominations from the membership and shall prepare a slate of candidates consistent with the needs and objectives of the Association.

Sect. 2.4: Members of the Nominating Committee shall disclose any potential conflicts of interest related to prospective nominees. Committee members who wish to be considered for nomination must recuse themselves from all deliberations related to that position. A Committee member may be recused from deliberations by a majority vote of the Committee.

Sect. 2.5: The Nominating Committee shall publish a call for nominations to the membership no fewer than one hundred twenty (120) days prior to the annual meeting and shall publish its slate of candidates no fewer than sixty (60) days prior to the annual meeting.

Sect. 2.6: A member of the Nominating Committee may be removed by a two-thirds vote of the Board for failure to perform duties, breach of independence, or conduct inconsistent with these Bylaws. At least sixty (60) days prior to the annual meeting the Nominating Committee shall provide a brief written report to the Board of Directors that includes its slate of candidates and a summary of the process used to solicit and evaluate candidates. The report shall also document that the Committee fulfilled its duties as outlined in these Bylaws. If the Nominating Committee does not produce a slate by the required deadline, the Board shall appoint an interim committee to complete the process.

Sect. 2.7: The Board of Directors shall review the slate of candidates offered by the Nominating Committee to ensure that it has fulfilled its duties and complied with the requirements of these Bylaws. If the Board determines that the Nominating Committee has not fulfilled its duties or complied with these Bylaws, it may return the slate to the Committee with a written request for reconsideration.

Sect. 3.1: Voting in the elections shall be via an Electronic Voting Program administered by the Secretary for those active members who maintain a current email address and by written ballot for those members who do not provide an email address. A thirty (30) day notice of this election, by a ballot, shall be mailed or emailed by the Secretary to all members.

Sect. 3.2: This ballot shall show the Nominating Committee's slate of officers, each of which shall be a current member of the Association. It shall also contain space for one write-in vote for Director-at-Large.

Sect. 3.2.1: Any member in good standing may be nominated for an elected position by submitting a petition signed by twenty-five (25) members no fewer than sixty (60) days prior to the annual meeting. All valid petition nominees shall appear on the ballot in addition to the Nominating Committee's slate.

Sect. 3.3: To be valid, a ballot must be received by the Secretary prior to the start of the actual count of the votes at the meeting.

Sect. 3.4: The total of all votes, the names voted on, and the persons elected shall be announced by the Secretary. A plurality of the votes cast for each office shall be sufficient for election.

ARTICLE VII: MEETINGS

Sect. 1: The annual meeting of the members shall be held in the Spring. A simple majority (51%) of those present shall be decisive in any vote, except as provided for in the election of officers, (ARTICLE VI, Sect. 3) and amendments to these Bylaws (ARTICLE XIII, Sect. 2.)

Sect. 2: Special meetings of the members may be called at any time by the President, or a majority of the Board of Directors, provided that a minimum of fifteen (15) days' notice is given to all members.

Sect. 3: The Board of Directors will establish its own schedule of meetings by agreement of the Board, but shall meet at least four (4) times a year. The President, the First Vice President, the Second Vice President, or the Secretary may call emergency meetings of the Board, notifying Board members by telephone, mail, email or other electronic means.

Sect. 4: A valid quorum at Board of Directors meetings shall consist of a majority of the current Board members.

Sect. 5: When necessary, motions can be presented via email from the President, the First Vice President, the Second Vice President, or the Secretary, with a deadline specified for the time limit before which all votes must be received.

Sect. 5.1: A period of no less than 72 hours must be allowed for questions or comments after the presentation of the motion.

Sect. 5.2: Each Board member's vote must be sent via email to the Secretary before the predetermined deadline. The Secretary shall reply to confirm that each vote has been received. If the Secretary has not received any member's vote by the deadline, that member's vote shall be recorded as an abstention.

Sect. 5.3: As soon as possible after the deadline the Secretary shall announce if the motion had been passed and the results of the vote (i.e. each member's vote, votes for, votes against and abstentions).

ARTICLE VIII: DUTIES OF OFFICERS

Sect. 1: The *President* presides at meetings of the Board of Directors and general meetings of the membership and is the principal spokesperson for the Association. The President's signature is required on all formal correspondence relating to major policies, actions, engagements, or obligations of the Association. The President shall assist the Board of Directors in formulating the policies of the Association for carrying out its obligations as stated in ARTICLE II.

Sect. 1.1: The President may designate another Board member to sign any Board approved contract provided that any designation is disclosed to, and approved by a majority of the Board.

Sect. 1.2: Any contract that is signed by anyone other than the President (or approved designee), or is not approved by the Board will not be binding on NEARA.

Sect. 1.3: Any contract that is entered into by NEARA must be presented to the Board in its entirety and approved by a majority of the Board prior to being signed by the President.

Sect. 2: The *Vice Presidents* shall assist the President in the execution of his/her duties for effecting measures voted by the Association. In the event of the President's inability to carry out the duties of his/her office, the First Vice President shall assume the duties of that office until the next election. The First Vice President shall also serve as Program Chair for the General Meetings. The Second Vice President shall serve as coordinator of chapters and special interest groups and coordinate and assist the Directors-at-Large as they assume various Board duties outlined in Sect. 5.

Sect. 3: The *Treasurer* shall be responsible for the Association's funds and disbursements, as specified in ARTICLE IV, Sect. 5 & 6.

Sect. 4: The *Secretary* shall keep and maintain the Minutes of all meetings of members and meetings of the Board of Directors, and shall assist the President with various Association matters as deemed necessary.

Sect. 5: The Directors-at-Large shall actively participate on the Board, joining committees and subcommittees and/or rotating among them, becoming coordinators, and acquiring an understanding of the Board and NEARA in preparation to assume the positions required of the Board.

ARTICLE IX: STANDING COMMITTEES

Sect. 1: *Research and Special Projects Committee:* The Chair of the Research and Special Projects Committee shall be appointed annually by the President and be approved by the Board of Directors. The Chair shall appoint three (3) or more members to serve on the Committee. The Research and Special Projects Committee shall promote research, solicit and recommend projects, set guidelines and standards and maintain site information.

Sect. 2: *Publications Committee:* The Chair of the Publications Committee shall be appointed annually by the President and be approved by the Board of Directors. The Chair shall appoint three (3) or more

members to serve on the Committee. Editors shall be nominated by the Publications Committee Chair, to be approved by the Board of Directors. The Publications Committee shall be responsible for publications of the full Association and oversight of chapter and special interest group newsletters.

Sect. 3: *Library and Archives Committee:* The Chair of the Library and Archives Committee shall be appointed annually by the President and be approved by the Board of Directors. The Chair shall appoint three (3) or more members to serve on the Committee. The Library and Archives Committee shall maintain and conserve the NEARA Library Collection and archival materials.

Sect. 4: *Member Communications Committee:* The Chair of the Member Communications Committee shall be appointed annually by the President and be approved by the Board of Directors. The Chair shall appoint three (3) or more members to serve on the Committee. The Member Communications Committee shall maintain membership records, send out an annual billing for payment of membership dues, develop membership material, and maintain NEARA's presence on the internet.

Sect. 5: *Finance Committee:* The Chair of the Finance Committee shall be appointed annually by the President and be approved by the Board of Directors. The Chair shall appoint three (3) or more members to serve on the Committee. The Finance Committee shall meet no fewer than four (4) times per year to review the financial statements of the organization and assist in preparing the annual budget. The Committee shall be responsible for the policies and programs for funding, financial management, facilities management, assets, risks, and insurance. The Finance Committee shall conduct periodic audits of the NEARA financial records. The Committee shall be responsible for oversight of the management of investments.

Sect. 6: *Resource Development Committee:* The Chair of the Resource Development Committee shall be appointed annually by the President and be approved by the Board of Directors. The Chair shall appoint three (3) or more members to serve on the Committee. The Resource Development Committee shall be responsible for soliciting donations, gifts, grants, and other financial aid to support the goals of the Association. It shall also develop promotional materials, coordinate advocacy efforts and disseminate NEARA materials.

Sect. 7: *Preservation Committee:* The Chair of the Preservation Committee shall be appointed annually by the President and be approved by the Board of Directors. The Chair shall appoint three (3) or more members to serve on the Committee. The Preservation Committee shall be responsible for identifying American lithic sites that need to be preserved and to coordinate preservation efforts with like minded entities such as property owners, interested citizens, governments, and non-governmental organizations.

Sect. 8: Other Committees: The President may establish other committees as deemed to be in the interest of the Association and appoint chairs to be approved by the Board of Directors.

ARTICLE X: CHAPTERS AND SPECIAL INTEREST GROUPS

Sect. 1: The Board of Directors shall have the power to establish, combine or dissolve Chapters. Chapter Coordinators shall be appointed annually by the President and be approved by the Board of Directors.

Sect. 2: The Coordinator shall be responsible for all Chapter activities and shall submit a Chapter report to the Board of Directors semi-annually. The Chapter Coordinators shall be responsible for a summary of the chapter's activities to be presented at the annual meeting. The Chapter Coordinator shall file copies of all site reports with the Library & Archives. For site reports not originating with the chapter coordinator the Library & Archives shall copy the chapter coordinator.

Sect. 3: Special Interest Groups. A Special Interest Group (SIG) on a NEARA-related subject may be proposed in writing by any NEARA member and submitted to the Board of Directors for approval. The SIG shall have a coordinator who shall submit a report to the Board of Directors semi-annually. SIGs may be dissolved by the Board of Directors for just cause.

Sect. 4: Oversight of Chapters and Special Interest Groups will rest with the Board of Directors through the Second Vice President.

ARTICLE XI: ACCOUNTABILITY

Sect. 1: No member may use the name, acronym, logo, office, position, title, or policies of the Association for the purpose of eliciting support for personal views or conclusions, or for monetary gain. The name of the Association shall be used only in ways beneficial to its purpose. Any activity involving the Association in negotiations with an outside agency shall be reported with due and reasonable promptness to the President and the Board of Directors.

ARTICLE XII: TERMINATION

Sect. 1: In the event of the dissolution of the organization, any funds outstanding after the payment of all debts shall be distributed to an organization exempt under Sect. 501(c)(3) of the Internal Revenue Code, or to a governmental unit or instrumentality for public purposes.

ARTICLE XIII: AMENDMENTS

Sect. 1: Amendments to these Bylaws may be proposed by the Board of Directors or, in writing by at least ten (10) members.

Sect. 2: The Secretary shall then submit the proposed amendment(s) to the membership in the form of a ballot at least thirty (30) days in advance of the annual meeting. Amendments are adopted when approved by two-thirds (2/3) votes of the members whose ballots have been received by the start of that meeting.

ARTICLE XIV: RULES OF ORDER

Sect. 1: Robert's *Rules of Order*, in the most recent revised edition, shall govern all meetings, where not in conflict with the Constitution and these Bylaws.

ARTICLE XV: CONFLICT OF INTEREST

Sect. 1: Any possible conflict of interest on the part of any member of the Board, Officer, or Employee of NEARA shall be disclosed in writing to the Board and made a matter of record through an annual procedure and also when the interest involves a specific issue before the Board.

Sect. 2: Where the transaction involving a Board Member, Trustee, or Officer exceeds five hundred dollars (\$500) but is less than five thousand dollars (\$5,000.00) in a fiscal year, a two-thirds vote of the disinterested directors is required.

Sect. 3: Where the transaction involved exceeds five thousand dollars (\$5,000) in a fiscal year, then a two-thirds vote of the disinterested directors and publication in the NEARA Transit newsletter is required.

Sect. 4: The minutes of the meeting shall reflect that a disclosure was made, the abstention from voting, and the actual vote itself.

Sect. 5: Every new member of the Board will be advised of this policy upon entering the duties of his or her office, and shall sign a statement acknowledging, understanding of, and agreement to, this policy.

Sect. 6: The Board will comply with all requirements of New Hampshire law in this area and the New Hampshire requirements are incorporated into and made a part of this policy statement.

Appendix A

Society for American Archaeology — Principles of Archaeological Ethics

Principle No. 1: Stewardship

The archaeological record, that is, in situ archaeological material and sites, archaeological collections, records and reports, is irreplaceable. It is the responsibility of all archaeologists to work for the long-term conservation and protection of the archaeological record by practicing and promoting stewardship of the archaeological record. Stewards are both caretakers of and advocates for the archaeological record for the benefit of all people; as they investigate and interpret the record, they should use the specialized knowledge they gain to promote public understanding and support for its long-term preservation.

Principle No. 2: Accountability

Responsible archaeological research, including all levels of professional activity, requires an acknowledgment of public accountability and a commitment to make every reasonable effort, in good faith, to consult actively with affected group(s), with the goal of establishing a working relationship that can be beneficial to all parties involved.

Principle No. 3: Commercialization

The Society for American Archaeology has long recognized that the buying and selling of objects out of archaeological context is contributing to the destruction of the archaeological record on the American continents and around the world. The commercialization of archaeological objects - their use as commodities to be exploited for personal enjoyment or profit - results in the destruction of archaeological sites and of contextual information that is essential to understanding the archaeological record.

Archaeologists should therefore carefully weigh the benefits to scholarship of a project against the costs of potentially enhancing the commercial value of archaeological objects. Whenever possible they should discourage, and should themselves avoid, activities that enhance the commercial value of archaeological objects, especially objects that are not curated in public institutions, or readily available for scientific study, public interpretation, and display.

Principle No. 4: Public Education and Outreach

Archaeologists should reach out to, and participate in cooperative efforts with others interested in the archaeological record with the aim of improving the preservation, protection, and interpretation of the record. In particular, archaeologists should undertake to: 1) enlist public support for the stewardship of the archaeological record; 2) explain and promote the use of archaeological methods and techniques in understanding human behavior and culture; and 3) communicate archaeological interpretations of the past. Many publics exist for archaeology including students and teachers; Native Americans and other ethnic, religious, and cultural groups who find in the archaeological record important aspects of their cultural heritage; lawmakers and government officials; reporters, journalists, and others involved in the media; and the general public. Archaeologists who are unable to undertake public education and outreach directly should encourage and support the efforts of others in these activities.

Principle No. 5: Intellectual Property

Intellectual property, as contained in the knowledge and documents created through the study of archaeological resources, is part of the archaeological record. As such it should be treated in accord with the principles of stewardship rather than as a matter of personal possession. If there is a compelling reason, and no legal restrictions or strong countervailing interests, a researcher may have primary access

to original materials and documents for a limited and reasonable time, after which these materials and documents must be made available to others.

Principle No. 6: Public Reporting and Publication

Within a reasonable time, the knowledge archaeologists gain from investigation of the archaeological record must be presented in accessible form (through publication or other means) to as wide a range of interested publics as possible. The documents and materials on which publication and other forms of public reporting are based should be deposited in a suitable place for permanent safekeeping. An interest in preserving and protecting in situ archaeological sites must be taken into account when publishing and distributing information about their nature and location.

Principle No. 7: Records and Preservation

Archaeologists should work actively for the preservation of, and long term access to, archaeological collections, records, and reports. To this end, they should encourage colleagues, students, and others to make responsible use of collections, records, and reports in their research as one means of preserving the in situ archaeological record, and of increasing the care and attention given to that portion of the archaeological record which has been removed and incorporated into archaeological collections, records, and reports.

Principle No. 8: Training and Resources

Given the destructive nature of most archaeological investigations, archaeologists must ensure that they have adequate training, experience, facilities, and other support necessary to conduct any program of research they initiate in a manner consistent with the foregoing principles and contemporary standards of professional practice.

<http://www.saa.org/AbouttheSociety/PrinciplesofArchaeologicalEthics/tabid/203/Default.aspx>